

COMPETENCY & BEHAVIORAL FRAMEWORK DEVELOPMENT PROJECT

GB/HR/05/26/REGBCBFDP/1

Commercial Proposal
Prepared by Phoenix Consulting
For Gulf Bank
June 23rd, 2026

GLOBAL EXPERTISE

REGIONAL UNDERSTANDING

LOCAL FOCUS

Proprietary and Confidential



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TERMS & CONDITIONS

The following terms of business apply to engagements accepted by Phoenix Consulting in relation to consulting and training services. All work carried out in relation to such engagements is subject to these terms and conditions except to the extent that changes are expressly agreed in writing.

The terms of this agreement / quotation (proposal) do not include payment of any taxes or duties that may be levied by any government from time to time unless specifically mentioned in the agreement / quotation. Any future taxes or duties that may become applicable during the validity of this agreement / quotation (proposal) shall be the liability of "Client".

All prices included in this proposal are valid for the current calendar year.

TERMS & CONDITIONS (1/2)



Definition

1. "Client" refers to the first party in this agreement and the entity or individual to whom this agreement/proposal is addressed and is represented by the official signatory who applies their signature.
2. "Phoenix Consulting" refers to the second party, a consulting entity responsible for the design and delivery of the Services described in the scope of this agreement. "Phoenix Consulting," "Phoenix," "we," "our," or "us" may be used interchangeably.
3. Training delivery includes all facilitation of workshops, courses, modules and training sessions (including certification workshops).
4. Assessment Centers and Assessment Activities include all assessor-led and non-assessor-led components such as but not limited to: Situational Judgement Tests, Competency-Based Behavioral Interviews, Simulations (case study, role play, group exercise).
5. "Days": Means business Days, being any Day other than a local weekend, or public holiday in the jurisdiction of the Phoenix Consulting entity contracted under this Agreement. All timelines and deadlines referenced in this Agreement shall be calculated on the basis of business Days, unless otherwise expressly stated.

Complaints Procedure

1. Enquiries and complaints shall be made in written form and have to contain sufficient detail to allow Phoenix Consulting to compile an official written response.
2. Phoenix Consulting shall officially acknowledge the complaint not later than 7 Days from the date of its' reception.
3. All clients' requests shall be reviewed on case-to-case basis, and Phoenix reserves the right to a priori reject any request.

Client Documents & File Retention

1. If we are provided with custody of any documents belonging to "Client" those documents will be retained during the course of the engagement unless their return is requested. After completion and acceptance of the engagement and receipt of payment of all invoices, these documents will be returned to the client if separate arrangements have been made.
2. We reserve the right, where fees have been invoiced and payment is outstanding to us, to exercise a lien in respect of those outstanding fees over any documents belonging to "Client" which may be in our possession.
3. It is our normal practice to retain documents relating to client engagements for six years after the end of the engagement. Thereafter, unless separate arrangements have been made, the documents or papers may be destroyed by us without reference to "Client".

Force Majeure

1. Subject to 'Client Responsibilities' section below, neither we nor the client shall be liable in any way for failure in performing our obligations under this agreement if the failure is due to causes outside the reasonable control of the party in default.
2. Phoenix Consulting shall not be liable to "Clients" or be deemed to be in breach of any agreement it has concluded with them for any delay in performing or failure to perform any of Phoenix Consulting's obligations in respect of the consulting services and the training services if the delay or failure was due to any cause such as war, warlike activities, fire, storm, explosion, national emergency, labor dispute, strike, lock-out, civil disturbance, actual or threatened violence by any terrorist group, newly enacted law or regulation or any other cause not within the control of Phoenix Consulting.

Cancellation Policy

1. Cancellations and postponements requests from both parties shall be done in written form via email and will be deemed effective from date of receipt provided that such changes are subject to mutual agreement between the parties.
2. Any change in scope, timeframe, number of participants/sessions, type of services is requested by the client, this may result in revision in fees that will be clearly communicated by Phoenix consulting in written form via email. Any such fee adjustment shall be clearly communicated by Phoenix Consulting in written form via email and shall be subject to the Client's written acceptance before taking effect.

A-Consulting:

1. Phoenix Consulting may cancel the engagement for reasons that are materially and adversely affecting the performance of its responsibilities under this proposal, or where Phoenix Consulting reasonably determines that there has been non-disclosure of material information by "Client".
2. The client may cancel this agreement by giving Phoenix Consulting not less than 30 Days of notice. In the event of cancellation of the agreement by "Client", for whatever reason within less than 30 Days notice, Phoenix shall invoice, and the Client shall pay all of Phoenix Consulting's costs incurred up until the termination of the agreement **in addition to 10% of total value of project.**

B-Training Delivery, Assessment Centers and Assessment Center Activities:

1. No cancellation fee if the cancellation takes place not less than 14 Days prior to the start of the delivery/assessment Day.
2. 50% cancellation fee if the cancellation takes place between 10 Days and 14 Days prior to the start of the delivery/assessment Day.
3. 100% cancellation fee if the cancellation takes place less than 10 business Days prior to the start of the delivery/assessment Day.
4. Requests to reschedule may be accommodated at our sole discretion and subject to availability. Where rescheduling is approved, no charges will apply in case the request was received more than 10 Days prior to the start of assessment Day. Requests to reschedule made within 10 Days or less prior to start of assessment Day may be treated as cancellation for the purposes of applying the applicable cancellation fees. If rescheduling incurs any additional costs for Phoenix, "Client" shall cover the actual cost dispensed by Phoenix Consulting.
5. Failure of the client or participants to attend (in whole or in part) the Assessment Services or Training Delivery, whether virtual or in-person, will not entitle "Client" to a refund or credit unless otherwise agreed in writing.
6. Where assessment activities and training material design and development involve customization efforts or third-party involvement, these costs are non-refundable once incurred and will be billed to the client regardless of cancellation timing.
7. In case cancelled by Phoenix Consulting: 100% refund shall be applicable if cancellation takes place outside of Force Majeure.

C-Psychometric Assessments (Personality and Ability Testing):

1. Once reports are generated the amount is due and must be paid within the agreed upon terms. Once a candidate begins the assessment process, any actual cost is also due to be paid within the agreed upon terms.
2. Any changes or replacement of candidates intended to undertake the assessments may incur additional costs.
3. Subscription-based assessment services may require upfront payments and will have their own cancellation policy separately.

Common Responsibilities

1. "Client" accepts not to outsource or provide any human capital consulting or training work neither to Phoenix consultants nor to Phoenix trainers or assessors or experts. All leads or potential work during this engagement term must come through Phoenix entity.
2. Neither party will solicit or entice away any of the other party's staff with whom they come into contact during and for the duration of 12 months after the performance of the Services (Consulting & Training).

TERMS & CONDITIONS (2/2)

Our Responsibilities

1. We will provide our services (consulting & training) and manage the project with reasonable skill and care in accordance with professional and quality standards.
2. We will use our best endeavours to make the key staff including consultants and experts listed in the agreement available for the duration of their proposed involvement and use reasonable care not to change them during the course of the engagement. Phoenix reserves the right to replace staff with equally qualified person if need be whilst informing the client.
3. We will only cover the expenses related to the consultants, assessors and trainers, accommodation, flight ticket and airport transfers or to venue rental and catering, when specified in the commercial and investment slides.
4. The nature of the consultancy and training services we provide will necessarily depend on the amount and accuracy of information provided to us and the time scale within which the project is required.
5. We will take reasonable steps to safeguard the security and confidentiality of any information transmitted by means of the Internet or other electronic media, and "Client" acknowledges that we cannot guarantee its security or confidentiality. It is our policy to check all correspondence with anti-virus software, and the client accepts that we cannot guarantee that transmissions will be free from infection.
6. While our reports and advice may be a factor when "Clients" make decisions about the organization or individuals, the client solely remains responsible for any commercial or business decisions they would make. Phoenix Consulting shall not be liable for any such decisions or their consequences, except where such advice is demonstrably inaccurate due to professional negligence, willful misconduct, or breach of contract. "Client" acknowledges that such decisions may be influenced by a wide range of internal and external factors outside the scope of Phoenix's engagement.
7. Phoenix Consulting's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty, or otherwise, shall not exceed the total amount of fees paid by the Client under the specific engagement giving rise to the claim

Fees and Invoicing Arrangements

1. Our fees are based on the number and seniority of consultants and experts required, the degree of skill and responsibility involved, and the length of time resources are required. We will also charge for any disbursements incurred during the engagement and these will be reviewed periodically. Where our estimates of charges are based on a fee to be calculated by reference to man Days/hours which are average units used as an estimate of the work required for the provision of the services. This does not necessarily prescribe the number of Days/hours we will take to carry out the work.
2. The charge covers the consultants' time spent on the engagement whether at "Client's" premises or remotely. Where fees are calculated at a daily rate, the normal working Day will be eight hours. Additional hours or part Days will carry a proportional charge.
3. Any fee budget agreed upon is necessarily based on the assumption that the information required for our work is made available in accordance with agreed timetables, and that consultants and experts are available as required during the course of work. If delays or issues beyond our control occur, this may incur additional fees; Client will be advised off delays and incurred costs as they occur.
4. All invoices are due within 45 Days from invoiced date, in accordance with the agreed payment terms outlined for this Agreement. Any amount not paid by due date shall accrue interest at a rate of 1.5% per month of invoice value or the maximum amount allowed by law, whichever is higher, until fully paid.
5. Phoenix Consulting reserves the right to suspend work or withhold deliverables if any payment becomes overdue by more than fifteen (15) Days, without prejudice to any other rights under this Agreement.
6. **All applicable taxes including VAT, withholding tax, are not included in the pricing and are the responsibility of "Client".**
7. **All travel and accommodation expenses, venue rentals and catering fees are excluded from the pricing unless stated otherwise**
8. **All prices included in this agreement are valid for the current calendar year unless otherwise agreed upon by both parties.**

Client Responsibilities

1. "Client" accepts responsibility for and undertakes to perform tasks assigned to staff members (consultant or trainer) as agreed and set out in the project schedule, to ensure quality time from staff and provide reliable, relevant and useful information.
2. In relation to all our consultancy and training work for the client it is "Client's" responsibility to provide Phoenix Consulting with complete, accurate and timely information and to carry out any obligations ascribed to the client or others under your control. We will not be responsible for any consequences which may arise from any delay, inaccuracy or failure by "Client" or others under the client's control. Delay, inaccuracy or failure of data, and/or non-availability of timely access to resources under "Client's" control and/or failure of timely response may result in additional fees for which invoices may be raised.
3. The client undertakes to do everything in their power to contribute to the management of project risks. The management of risks attributed to factors outside the scope of the assignment or beyond the reasonable control of Phoenix Consulting will be "Client's" sole responsibility.
4. The Client agrees to take reasonable steps to ensure that such confidential information is protected against unauthorized access, disclosure, or use by its personnel, agents, or representatives.

Information & Confidentiality

1. Our partners, consultants, assessors, experts and trainers are under an obligation not to disclose to third parties' confidential information relating to Phoenix "Clients".
2. The copyright, intellectual property and design rights of the learning material are property of Phoenix Consulting and its expert consultants and trainers. It cannot be copied, shared or reproduced without prior written consent of Phoenix Consulting. The reports, letters, material, information and advice we provide to the client during this engagement are given in confidence solely for the purpose of this engagement and are provided on the condition that "Client" undertakes not to disclose these, or any other confidential information made available to the client by us during the course of our work, to any third party (being a party other than those to whom the report, letter, information or advice is addressed) without our prior consent in writing. Where reports, letters, material, information or advice given to "Client" by us will be provided to or used by a third party, we reserve the right to stipulate terms regarding such provision or to require the third party to enter into a direct relationship with us before any report, letter, information or advice is provided to that third party. Unless otherwise agreed in writing, we recognize no responsibility whatsoever other than that owed to the client as at the date which our report, training documents, material or other advice are given to "Client". The obligations and restrictions contained above do not apply to information:
 - Which is or becomes public knowledge other than by a breach of this paragraph;
 - Which is or becomes known from other sources without restriction on disclosure; or
 - Which is required to be disclosed by any professional obligation or by any legal or regulatory authority.
3. For the purposes of carrying out our responsibilities in this engagement, we shall not be treated as having notice of information which may have been provided to individuals within this firm who are not involved in this engagement.

Intellectual Property Rights

We retain all copyright and other intellectual property rights in everything developed by us either before or during the project including systems, methodologies, software, material and know-how. We also retain all copyright and other intellectual property rights in all reports, written advice or other material provided to the client although "Client" will have the full right to use these material within their own organization. To make use of these material outside the organization this will require Phoenix written permission in writing.

YOUR INVESTMENT & PAYMENT TERMS

INVESTMENT & PAYMENT TERMS

At Phoenix Consulting, we endeavor to provide our clients with global expertise at local costing.

Our commitment to you is to deliver an uncompromising standard of quality comparable to that of any leading global consulting firm, through a costing structure that is locally-minded yet aligned to the value we will create through our partnership with you.

For this engagement, our professional fees are broken down as follows:

Deliverables	Total Investment	Total Investment with 15% discount
Project Overview	\$93,909.38	\$79,823
Phase 1: Alignment with Vision & Strategy		
Phase 2: Qualitative & Quantitative Data Inputs		
Phase 3: Analysis & Benchmark		
Phase 4: Framework Development & Initial Validation		
Phase 5: Finalization, Validation & Presentation		
Enablement, Knowledge Transfer & Sustainability		

The payment schedule is detailed as follows:

- 40% upon contract signature;
- 40% upon completion of the co-creation workshops;
- 20% upon project closure & sign off.

**The above-mentioned fees exclude the optional company-wide deployment of the quantitative survey as well as the analysis of the qualitative data collected.*

**The fees also exclude all travel-related expenses, including but not limited to airfare, accommodation, meals, local transportation, and other associated costs. Such expenses, if applicable, will be charged separately on an actual-cost basis.*

FOR REVIEW & APPROVAL

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I agree to the specifications as stated in this proposal dated May 18th 2026, supplied to **Gulf Bank** by **Phoenix Consulting** I have read and agree to this proposal and its terms and conditions.

As a duly authorized officer of Gulf Bank, I hereby contract with **Phoenix Consulting** for the provision of the services described.

For Gulf Bank

Name:

Position:

Signature:

Date:

Stamp:

For Phoenix Consulting

Name: Zahi Elias Mimassi

Position: CEO & Founder

Signature:

Date:

Stamp:

❖ *This proposal remains valid for 90 days.*



Global expertise.
Regional understanding.
Local focus.

EMPOWERING ORGANIZATIONS SINCE 2010

www.phoenixconsultingint.com

Thank **YOU**

Proprietary and Confidential